

SUPREME COURT STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.

-----X
ERIC CAMPBELL, CYNTHIA GRACIA,
ELIJAH CAMPBELL, and A.C., an infant,
by his Father and Natural Guardian, Elijah Campbell,

Date Purchased:

SUMMONS

Plaintiffs

- v -

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK POLICE LIEUTENANT LEE,
JOHN DOES, police officers and non-uniformed employees
of the New York City Police Department, the identity and
number of whom is presently unknown, individually and in their
official capacity as New York City Police Officers,
RICHARD ROES, supervisory police officers of the
City of New York, the identity and number of whom is presently
unknown, individually and in their official capacity as
New York City Police Officers,

Defendants

-----X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action
and to serve a copy of your answer on the plaintiff's attorney, Gregory E. Green,
P.C., within 20 days after service of this summons, exclusive of the day of service
(or within 30 days after the service is complete if the summons is not personally
delivered to you within the State of New York), and in the case of your failure to
appear or answer, judgment will be taken against you by default for the relief
demanded in the complaint.

Dated: August 2, 2018
Callicoon, NY

Page 1 of 2

Yours, etc.,

GREGORY E. GREEN, P.C.
430 River Road
Callicoon, NY 12723
(845) 545-9119

TO:

City of New York
100 Church Street
New York, New York 10007

New York City Police Department
One Police Plaza
New York, NY 10007

Lieutenant Lee
One Police Plaza
New York, NY 10007

John Does
One Police Plaza
New York, NY 10007

Richard Roes
One Police Plaza
New York, NY 10007

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ERIC CAMPBELL, CYNTHIA GRACIA,
ELIJAH CAMPBELL, and A.C., an infant,
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VERIFIED COMPLAINT

Plaintiffs

- v -

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK POLICE LIEUTENANT LEE,
JOHN DOES, police officers and non-uniformed employees
of the New York City Police Department, the identity and
number of whom is presently unknown, individually and in their
official capacity as New York City Police Officers,
RICHARD ROES, supervisory police officers of the
City of New York, the identity and number of whom is presently
unknown, individually and in their official capacity as
New York City Police Officers,

Defendants

-----X
Pursuant to the Fourth Amendment of the Constitution of the United States of America,
and 42 U.S.C. §1983, plaintiffs, jointly as a family and individually, by their attorney, Gregory
E. Green, P.C., complaining of the defendants, allege upon information and belief as follows, at
all times hereinafter mentioned:

1. Plaintiffs are residents of the City and State of New York and the County of New York,
residing at 3 Haven Plaza, #8B, New York, NY ("the premises".)
2. Defendant City of New York is a municipal corporation duly organized and existing
under and pursuant to the laws of the State of New York.
3. Defendant New York City Police Department is a department of the City of New York.
4. Lieutenant Lee was a police officer employed by the defendant City of New York.

5. John Does were police officers and non-uniformed police employees of the defendant City of New York, the identity and number of whom is presently unknown.
6. Richard Roes were supervisory police personnel of the defendant City of New York, the identity and number of whom is presently unknown.
7. That prior to the commencement of this action, and on or before 9.8.2017, plaintiffs duly filed with defendants a Notice of Claim, setting forth the time and place where plaintiffs suffered injuries as a result of the alleged negligence and intentional acts as alleged herein, the nature and extent of the injuries, and the amount claimed.
8. That the Notice of Claim was presented within 90 days after the cause of action accrued.
9. That 50-H municipal hearings of the adult plaintiffs were conducted on 12.6.2017.
10. More than 30 days have elapsed since such presentation of said claim and defendants have not adjusted same and have failed and neglected to make a good faith offer of settlement to counsel for the plaintiffs.
11. This action is commenced within 1 year and 90 days after the occurrence herein.

FACTUAL ALLEGATIONS

12. Plaintiffs Eric Campbell and plaintiff Cynthia Gracia are the parents of Elijah Campbell and the grandparents of A.C.
13. Plaintiff Eric Campbell is the father of A.C.
14. A.C. is an infant under the age of 14 years.
15. That on or about 4.21.2015, plaintiff Elijah Campbell was arrested with his brother, Malik Campbell, by defendants City Of New York and the New York City Police Department.

16. That up until on or about 6.14.2015, Malik Campbell resided at the premises. At that time, Malik Campbell did change his residence, and advised his probation officer that he did so.

17. That by informing his probation officer of his removal from the premises, it became accessible knowledge within the NYPD system of operations that Malik Campbell no longer resided at the premises.

18. On 9.17.2015, Malik Campbell was arrested again on domestic charges and held until his release at central booking.

19. That as a result of his 9.17.2015 arrest, Malik Campbell made a claim against defendants City Of New York and the New York City Police Department.

20. On 2.8.2016 charges against plaintiff Elijah Campbell, arising from his from his 4.21.2015 arrest, were dismissed.

22. On or about 2.8.2016 charges against plaintiff Malik Campbell arising from his from his 4.21.2015 arrest were dismissed.

23. That on or around late May/early June of 2017, Malik Campbell did receive settlement funds as a result of the aforementioned claim against defendants City Of New York and the New York City Police Department.

24. On 6.14.2017, at approximately 6:40 a.m., defendants did forcefully and without warning enter the premises.

25. That the warrant used by the defendants as a basis to forcefully enter the premises was defective.

26. That the warrant used by the defendants as a basis to forcefully enter the premises was defective on its face.

27. That it was known or should have been known to the individual defendants trusted with enforcing said warrant that said warrant was defective.

28. That in execution of said warrant, plaintiff Eric Campbell, was smashed in the face with a shield, forced face down to the ground at gunpoint, handcuffed, and stomped on his back while face down on the ground and handcuffed, picked up by his arms while handcuffed, and jailed.

29. That plaintiff Cynthia Gracia was forced from her bed, partially unclothed, forced to stand partially naked in front of police officers of the opposite sex, handcuffed, and not allowed to dress while hearing the screams of her husband, son and grandson (the remaining plaintiffs.)

30. That in execution of said warrant, plaintiff Elijah Campbell was removed from the premises under said false pretenses, and so was separated from his son.

31. That in execution of said warrant plaintiff A.C. observed the beating of his father and was separated from his father under false pretenses.

32. Plaintiff Eric Campbell was held at 9th precinct for 4-5 hours

33. Plaintiff Eric Campbell was jailed at central booking 1.5 days

34. As a result of the warrant and its execution, plaintiff Elijah Campbell was charged with marijuana possession. The charges were dropped on 7.19.2017

35. That the execution of the subject warrant on 6.14.2018 was retaliation against plaintiffs for Malik Campbell's successful claim and monetary award from the City of New York.

36. That the execution of the subject warrant on 6.14.2017 by defendants was retaliation against the plaintiffs for dismissal of defendants' charges against plaintiff Elijah Campbell.

37. That the execution of the subject warrant on 6.14.2017 by defendants was retaliation against the plaintiffs for dismissal of defendants' charges against Malik Campbell.

38. That under the guise of mistake, the execution of the subject warrant on 6.14.2018 was retaliation against plaintiffs for Malik Campbell's successful claim and monetary award from the City of New York.

39. That under the guise of mistake, the execution of the subject warrant on 6.14.2017 by defendants was retaliation against the plaintiffs for defendants' dismissal of charges against plaintiff Elijah Campbell

40. That on 11.3.2017, Malik Campbell was murdered on the streets of New York, within the 9th precinct.

41. That on or about 3.22.2018, behind the plaintiff's residence, defendant Lieutenant Lee drew a gun and pointed it at plaintiff Elijah Campbell.

42. That on or about 3.22.2018, behind the building known as 3 Haven Plaza, New York, NY, defendant Lieutenant Lee drew a gun and pointed it at plaintiff Elijah Campbell, and at that time and place defendant Lieutenant Lee stated to plaintiff Elijah Campbell that he (defendant Lieutenant Lee) he was happy Malik Campbell was dead.

43. That plaintiff Cynthia Gracia did witness this incident on 3.22.2018.

44. That on or about 3.28.2018, as plaintiff Elijah Campbell was walking on 10th Street in Manhattan, defendant Lieutenant Lee followed plaintiff, then cursed at plaintiff and accused plaintiff of jaywalking.

45. That on or about 4.5.2018, while waiting for car service on 12th street between C&D in Manhattan, plaintiff Elijah Campbell was harassed by defendant Lieutenant Lee, who approached plaintiff in a threatening manner, as if waiting for car service was not an acceptable activity.

46. That on or about 5.5.2018, while at the neighborhood deli, Elijah was harassed by Lieutenant Lee, who approached plaintiff in a threatening manner, as if purchasing items at a deli was not an acceptable activity.

**AS AND FOR THE 1ST CAUSE OF ACTION ON BEHALF OF ALL
PLAINTIFFS: MUNICIPAL LIABILITY**

47. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices procedures and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department

48. The foregoing customs, policies, usages, practices procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

49. It is believed that defendants Richard Roes received complaints about the conduct of defendant Lieutenant Lee and defendants John Does, knew about past complaints, or, in the exercise of due diligence, would have perceived that these officers had conduct that posed a threat to the plaintiffs as a family.

50. Richard Roes knew or should have known that such conduct would occur

51. Richard Roes knew or should have known that such conduct would occur and failed to take any preventative or disciplinary action

52. The foregoing customs, policies, usages, practices procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

53. The foregoing customs, policies, usages, practices procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

54. The foregoing customs, policies, usages, practices procedures and rules of the City of New York and the New York City Police Department allowed police officers to use excessive force and abuse the procedure of legal process.

55. Defendants, collectively and individually while acting under the color of state law were directly and actively involved in violating the constitutional rights of plaintiffs.

56. Defendants, collectively and individually while acting under the color of state law acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiffs' constitutional rights.

57. Defendant City of New York maintained no system or maintained an inadequate system of review of police officers and their supervisory personnel

58. All of the foregoing acts by defendants deprived plaintiffs of their civil rights including but not limited to liberty and due process.

**AS AND FOR THE 2nd CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ERIC CAMPBELL: EXCESSIVE FORCE**

59. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

60. At the time and place alleged above, defendants acting in their official capacity as police officers of the defendant City of New York, without any probable cause or provocation , and

under the color of their authority as police officers, used excessive force, and viciously attacked the plaintiff, threatened the plaintiff, and inflicted serious bodily harm to the plaintiff.

61. Defendants, individually and collectively, knew or should have known that any charges, if any, against the plaintiff were wholly false and untrue, lacking probable cause and that plaintiff had not committed any crime.

62. As a direct and proximate cause of the above referenced unlawful excessive force administered to the plaintiff by the defendants, committed under the color of law and their authority as police officers of the defendant City of New York, plaintiff suffered grievous bodily harm and was deprived of his right to be secure in his person.

63. That as a result of the foregoing, the plaintiff sustained serious, severe and permanent personal injuries and was rendered sick, sore, lame, and disabled; plaintiff was caused to suffer great pain, discomfort, and disability and, upon information and belief, will continue to suffer pain, discomfort, mental anguish, emotional distress and disability in the future; plaintiff was caused to undergo hospital and medical care, aid and attention, and upon information and belief, may continue to require to undergo medical care, aid and attention for a long period of time to come in the future; plaintiff was obliged to expend and incur large sums of monies for medical care, aid and attention and, upon information and belief, will continue to be obliged to expend and incur large sums of monies for future medical care, aid and attention; plaintiff was caused to become incapacitated.

64. All of the foregoing acts by defendants deprived plaintiff of his civil rights including but not limited to the unlawful use of excessive force against this plaintiff.

**AS AND FOR THE 3rd CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ERIC CAMPBELL: NEGLIGENCE**

65. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

66. Defendants were negligent, in hiring, employing and retaining within its employ the individual defendants; in failing to exercise reasonable care to correct and remove individual defendants from their duties as police officers; by exceeding their authority; by the procurement of a search warrant for an individual who NYPD knew or should have known did not reside at the plaintiffs' residence; by negligently preparing a warrant which contained false information and by negligently using force that was unlawfully excessive.

67. That the foregoing occurrence was caused solely and wholly as a result of the negligence of the defendants, without any negligence on the part of the plaintiff contributing thereto.

68. That as a result of the foregoing, the plaintiff sustained serious, severe and permanent personal injuries and was rendered sick, sore, lame, and disabled; plaintiff was caused to suffer great pain, discomfort, and disability and, upon information and belief, will continue to suffer pain, discomfort, mental anguish, emotional distress and disability in the future; plaintiff was caused to undergo hospital and medical care, aid and attention, and upon information and belief, may continue to require to undergo medical care, aid and attention for a long period of time to come in the future; plaintiff was obliged to expend and incur large sums of monies for medical care, aid and attention and, upon information and belief, will continue to be obliged to expend and incur large sums of monies for future medical care, aid and attention; plaintiff was caused to become incapacitated.

69. That as a result of said negligence, plaintiff was deprived of his civil rights including but not limited to liberty and due process.

**AS AND FOR THE 4th CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ERIC CAMPBELL: FALSE ARREST**

70. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

71. As a result of the foregoing customs, policies, usages, practices procedures and rules of the City of New York and the New York City Police Department plaintiff was falsely arrested and incarcerated.

72. As a result of the aforesaid conduct of the defendants, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined and incarcerated by the defendants.

73. Defendants arrested and incarcerated plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding the knowledge that said arrest and incarceration would jeopardize plaintiff's liberty, well-being and safety.

74. That as a result of said negligence plaintiff was deprived of his civil rights including but not limited to liberty and due process.

**AS AND FOR THE FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ERIC CAMPBELL: MALICIOUS ABUSE OF PROCESS**

75. The aforementioned individual defendants issued legal process to search the plaintiff's residence and to place this plaintiff under arrest.

76. That the warrant used on or about June 13, 2017 contained false information.

77. The aforementioned individual defendants arrested plaintiff to obtain a collateral objective outside the legitimate ends of the legal process.

78. The aforementioned individual defendants acted with intent to harm plaintiff without excuse or justification.

79. As a result of the foregoing plaintiff sustained mental anguish, shock, fright, apprehension, embarrassment, and humiliation.

80. That as a result of said negligence plaintiff was deprived of his civil rights including but not limited to liberty and due process.

**AS AND FOR THE SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ERIC CAMPBELL: INTENTIONAL ASSAULT**

81. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

82. The aforementioned defendants did willfully wantonly intentionally and maliciously and recklessly assault batter, step on, smash and beat plaintiff in the neck, back, shoulder and knee causing plaintiff to sustain serious and sever injuries.

83. All of the above occurred without any fault or provocation on the part of the plaintiff.

84. That as a result of said negligence plaintiff was deprived of his civil rights including but not limited to liberty and due process.

**AS AND FOR THE 8th CAUSE OF ACTION ON BEHALF OF PLAINTIFF
CYNTHIA GRACIA: EXCESSIVE FORCE**

85. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

86. At the time and d place alleged above, defendants acting in their official capacity as police officers of the City of New York, without any probable cause or provocation, and under the color of their authority as police officers, used excessive force, and viciously attacked the plaintiff, threatened the plaintiff, inflicted serious bodily harm to the plaintiff.

87. Defendants, individually and collectively, knew or should have known that any charges, if any, against the plaintiff were wholly false and untrue, lacking probable cause and that plaintiff had not committed any crime.

88. As a direct and proximate cause of the above referenced unlawful excessive force administered to the plaintiff by the defendants, committed under the color of law and their authority as police officers of the defendant City of New York, plaintiff suffered grievous bodily harm and was deprived of her right to be secure in her person.

89. That as a result of the foregoing, the plaintiff sustained serious, severe and permanent personal injuries and was rendered sick, sore, lame, and disabled; plaintiff was caused to suffer great pain, discomfort, and disability and, upon information and belief, will continue to suffer pain, discomfort, mental anguish, emotional distress and disability in the future; plaintiff was caused to undergo medical care, aid and attention, and upon information and belief, may continue to require to undergo medical care, aid and attention for a long period of time to come in the future; plaintiff was obliged to expend and incur large sums of monies for medical care, aid and attention and, upon information and belief, will continue to be obliged to expend and

incur large sums of monies for future medical care, aid and attention; plaintiff was caused to become incapacitated, and upon information and belief, may continue to be.

90. All of the foregoing acts by defendants deprived plaintiff of her civil rights including but not limited to the unlawful use of excessive force.

**AS AND FOR THE 9th CAUSE OF ACTION ON BEHALF OF PLAINTIFF
CYNTHIA GRACIA: NEGLIGENCE**

91. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

92. Defendants were negligent, in hiring, employing and retaining within its employ the individual defendants; in failing to exercise reasonable care to correct and remove individual defendants from their duties as police officers; by exceeding their authority; by the procurement of a search warrant for an individual who NYPD knew or should have known did not reside at the plaintiffs' residence; by negligently preparing a warrant which contained false information and by negligently using force that was unlawfully excessive.

93. That the foregoing occurrence was caused solely and wholly as a result of the negligence of the defendants, without any negligence on the part of the plaintiff contributing thereto.

94. That as a result of the foregoing, the plaintiff sustained serious, severe and permanent personal injuries and was rendered sick, sore, lame, and disabled; plaintiff was caused to suffer great pain, discomfort, and disability and, upon information and belief, will continue to suffer pain, discomfort, mental anguish, emotional distress and disability in the future; plaintiff was caused to undergo hospital and medical care, aid and attention, and upon information and belief, may continue to require to undergo medical care, aid and attention for a long period of time to

come in the future; plaintiff was obliged to expend and incur large sums of monies for medical care, aid and attention and, upon information and belief, will continue to be obliged to expend and incur large sums of monies for future medical care, aid and attention; plaintiff was caused to become incapacitated.

95. That as a result of said negligence plaintiff was deprived of her civil rights including but not limited to liberty and due process.

**AS AND FOR THE 10th CAUSE OF ACTION ON BEHALF OF PLAINTIFF
CYNTHIA GRACIA: INTENTIONAL ASSAULT**

96. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

97. The aforementioned defendants did willfully wantonly intentionally and maliciously and recklessly assault batter, step on, smash and beat plaintiff in the neck, back, shoulder and knee causing plaintiff to sustain serious and sever injuries,

98. All of the above occurred without any fault or provocation on the part of the plaintiff

99. The aforementioned defendants did willfully wantonly intentionally and maliciously and recklessly assault batter, step on smash and beat plaintiff in the neck, back, shoulder and knee causing plaintiff to sustain serious and sever injuries.

100. That as a result of said intentional assault plaintiff was deprived of her civil rights including but not limited to liberty and due process.

**AS AND FOR THE 11th CAUSE OF ACTION ON BEHALF OF PLAINTIFF
CYNTHIA GRACIA: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

101. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

102. The aforementioned defendants did willfully wantonly intentionally and maliciously, insult embarrass and scare this plaintiff by the use of unlawful intimidation; by the use of unlawful sexist intimidation; and threatening her child at gunpoint, all of which caused this plaintiff to be subjected to humiliation, embarrassment, and scorn, and was caused to suffer mental anguish, fear, and severe emotional distress.

103. That as a result of said intentional infliction of emotional distress plaintiff was deprived of her civil rights including but not limited to liberty and due process.

**AS AND FOR THE 12th CAUSE OF ACTION ON BEHALF OF
PLAINTIFF A.C.: NEGLIGENCE**

104. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

105. Defendants were negligent, in hiring, employing and retaining within its employ the individual defendants; in failing to exercise reasonable care to correct and remove individual defendants from their duties as police officers; by exceeding their authority; by the procurement of a search warrant for an individual who NYPD knew or should have known did not reside at the plaintiffs' residence; by negligently preparing a warrant which contained false information and by negligently using force that was unlawfully excessive.

106. That the foregoing occurrence was caused solely and wholly as a result of the negligence of the defendants, without any negligence on the part of the plaintiff contributing thereto.

107. That as a result of the foregoing, the plaintiff sustained serious, severe and permanent personal injuries and was rendered sick, sore, lame, and disabled; plaintiff was caused to suffer great pain, discomfort, and disability and, upon information and belief, will continue to suffer pain, discomfort, mental anguish, emotional distress and disability in the future; plaintiff was caused to undergo hospital and medical care, aid and attention, and upon information and belief, may continue to require to undergo medical care, aid and attention for a long period of time to come in the future; plaintiff was obliged to expend and incur large sums of monies for medical care, aid and attention and, upon information and belief, will continue to be obliged to expend and incur large sums of monies for future medical care, aid and attention; plaintiff was caused to become incapacitated.

108. That as a result of said negligence plaintiff was deprived of his civil rights including but not limited to liberty.

**AS AND FOR THE 13th CAUSE OF ACTION ON BEHALF OF
PLAINTIFF A.C.: FAMILY INTEGRITY**

109. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

110. That by their conduct, defendants arbitrarily tore at the sacred bond between parent and child.

111. That by said conduct, plaintiff has been denied constitutional right to family integrity.

**AS AND FOR THE 14th CAUSE OF ACTION ON BEHALF OF PLAINTIFF A.C.:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

112.. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

113. The aforementioned defendants did willfully wantonly intentionally and maliciously, insult embarrass and scare this plaintiff by the use of unlawful intimidation which caused this plaintiff to be subjected to humiliation, embarrassment, and scorn, and was caused to suffer mental anguish, fear and severe emotional distress.

114. That as a result of said intentional infliction of emotional distress plaintiff was deprived of his civil rights including but not limited to liberty and due process.

**AS AND FOR THE 15th CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ELIJAH CAMPBELL: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

35. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

115. The aforementioned defendants did willfully wantonly intentionally and maliciously, insult embarrass scare and threaten plaintiff Elijah Campbell, including but not limited to threat made at gunpoint and caused this plaintiff to be subjected to humiliation, embarrassment, and scorn, and plaintiff was caused to suffer mental anguish, fear, and severe emotional distress.

116. That the verbal abuse and threatening gestures made on several occasions as alleged herein, all of which were intentionally aimed at plaintiff Elijah Campbell caused this plaintiff to

be subjected to humiliation, embarrassment, and scorn, and plaintiff was caused to suffer mental anguish, fear, and severe emotional distress.

**AS AND FOR THE 16th CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELIJAH CAMPBELL: FAMILY INTEGRITY**

117. That the plaintiff repeats, realleges and reaffirms paragraphs 1-34 as previously set forth herein.

118. That by their conduct, defendants arbitrarily tore at the sacred bond between parent and child.

119. That by said conduct, plaintiff has been denied constitutional right to family integrity.

WHEREFORE, plaintiffs demand judgment on each and every Cause of Action against the defendants that exceeds the jurisdictional limits of all lower courts, together with the costs and disbursement of this action.

Dated: August 2, 2018
Callicoon, NY

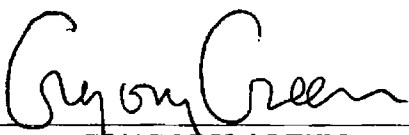
Yours, etc.,

GREGORY E. GREEN, P.C.
Attorney for Plaintiff
430 River Road
Callicoon, NY 12723
(845) 545-9119

VERIFICATION

Gregory Green, an attorney admitted to practice law in the courts of the State of New York, states the following with full knowledge and appreciation of the penalties of perjury, pursuant to CPLR 2106: I know the contents of Plaintiffs Summons and Complaint dated August 2, 2018, and same are true to my knowledge, except those matters that are stated to be alleged on information and belief. As to those matters, I believe them to be true. The reason I verify these statements as true is because I maintain my office in a different county than that in which the plaintiffs reside. The plaintiffs have sworn under oath as to the truth of these said contents.

Dated: August 2, 2018
Callicoon, NY



GREGORY GREEN

SUPREME COURT STATE OF NEW YORK
COUNTY OF NEW YORK

Index Number:

ERIC CAMPBELL, CYNTHIA GRACIA,
ELIJAH CAMPBELL, and A.C., an infant,
by his Father and Natural Guardian, Elijah Campbell,

Plaintiffs

- v -

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK POLICE LIEUTENANT LEE,
JOHN DOES, police officers and non-uniformed employees
of the New York City Police Department, the identity and
number of whom is presently unknown, individually and in their
official capacity as New York City Police Officers,
RICHARD ROES, supervisory police officers of the
City of New York, the identity and number of whom is presently
unknown, individually and in their official capacity as
New York City Police Officers,

Defendants

SUMMONS AND VERIFIED COMPLAINT

GREGORY E. GREEN, P.C.

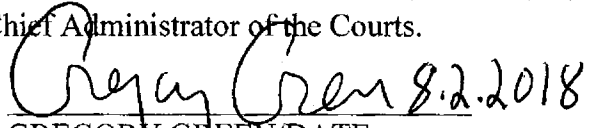
Attorney for the Plaintiff

600 Third Avenue, 2nd Floor

New York, NY 10016

(845) 545-9119

RULE 130-1.1-A CERTIFICATION: I hereby certify that all of the papers that I have served, filed or submitted to the court in this action are not frivolous as defined in subsection (c) of Section 130-1.1 of the Rules of the Chief Administrator of the Courts.


GREGORY GREEN/DATE